ARB 017/2025 Om v Ottilie

NOVEMBER 10, 2025 ARBITRATION - ORDERS

Claim No: ARB 017/2025

BETWEEN

OM

Claimant

and

OTTILIE

Defendant

ORDER WITH REASONS OF H.E. JUSTICE SHAMLAN AL SAWALEHI

UPON the Order with Reasons of H.E. Justice Shamlan Al Sawalehi dated 28 October 2025 dismissing the Defendant's Jurisdictional Challenge Application No. ARB-017-2025/1 dated 25 June 2025 filed under Part 12 of the Rules of the DIFC Courts ("RDC") and granting the Claimant's Application No. ARB-017-2025/2 dated 18 July 2025 (the "Order")

AND UPON paragraph 3 of the Order directing the Defendant to pay the Claimant's costs of the Application on the standard basis if not agreed

AND UPON the Claimant filing its Statement of Costs dated 3 November 2025

AND UPON reviewing the Statement of Costs and the supporting material

AND UPON considering Part 38 of the Rules of the DIFC Courts ("RDC") and Practice Direction No. 4 of 2017 (Interest on Judgments)

IT IS HEREBY ORDERED THAT:

1. The Defendant shall pay the Claimant the amount of AED 419,031.56 (the “Costs Award”), representing 80% of the total amount claimed in the Statement of Costs.

2. The Costs Award shall be paid within 14 days from the date of this Order, pursuant to RDC 38.40.

3. In the event the Defendant fails to pay the Costs Award within 14 days of this Order, interest shall accrue at 9% per annum from the date of this Order until full payment is made, in accordance with Practice Direction No. 4 of 2017.

Issued by:

Delvin Sumo

Assistant Registrar

Date of issue: 10 November 2025

At: 10am

SCHEDULE OF REASONS

1. This Order concerns the Claimant’s entitlement to costs pursuant to paragraph 3 of the Order dated 28 October 2025, by which I dismissed the Defendant’s Jurisdictional Challenge Application and granted the Claimant’s Application.

2. The Claimant duly filed its Statement of Costs on 3 November 2025, claiming a total of AED 523,789.45.

3. The Statement of Costs includes professional fees together with disbursements for Court filing fees, translation, attestation, courier and administrative charges.

4. I am satisfied that the fees and expenses were reasonably and proportionately incurred in connection with the Defendant’s unsuccessful Application and the Claimant’s related Application.

5. Nonetheless, exercising my discretion under RDC 38.8 and RDC 38.23, and applying the standard basis of assessment, I consider that a reduction to 80% is appropriate to reflect proportionality between the work undertaken and the scope of the issues determined.

6. Accordingly, I award the Claimant the amount of AED 419,031.56, representing 80% of the claimed amount, as a fair and reasonable quantification of its recoverable costs.

7. Payment shall be made within 14 days of this Order, with interest accruing thereafter at the rate and on the terms set out above.